

23NWCV02293 23NWCV02293

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Case Number: 23NWCV02293 Hearing Date: August 13, 2026 Dept: P

MASIAH SMITH, ET AL. v. DEON QUININE, ET AL.

CASE NO.: 23NWCV02293

/ 23STCV20707

HEARING: 08/13/2026 @

9:30 AM

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TENTATIVE ORDER

Plaintiff Maria Liliana Ramirez's motion to set aside the voluntary dismissal of City is DENIED.

Moving party to give notice.

Plaintiff Maria Liliana Ramirez (Plaintiff) moves to set aside the voluntary dismissal of Defendant City of Los Angeles (City) and reinstate City as a defendant.

Background

On July 26, 2023, Plaintiff Masiah Smith, a minor through her guardian ad litem Jalia Stephens filed a personal injury action against Defendants Deon Quinine, Los Angeles Metropolitan Transit Authority (Metro), Maria Lilliana Ramirez, and Does 1 through 10. The form complaint alleges that on December 22, 2022, at Long Beach Ave., 10 feet South of Vernon Ave, Defendants

collided at a railroad intersection. The complaint asserts a single cause of action for motor vehicle.

On August 29, 2023, in case no. 23STCV20707, Plaintiff Maria Lilliana Ramirez filed a personal injury action against Metro, City of Los Angeles (City), County of Los Angeles, Deon Quinine, and Does 1 through 20. The complaint alleges that on December 22, 2022, on Long Beach Avenue & E. Vernon Avenue, Los Angeles, CA 90058, “[a]fter waiting a proper amount of time, Plaintiff’s vehicle proceeded into the intersection of E. Vernon Avenue, when the Metro Rail owned by Defendants [Metro], City of Los Angeles, and/or County of Los Angeles, and driven by Defendant Deon Quinine, and caused a collision with Plaintiff’s vehicle, resulting in injuries and damages to Plaintiff.” The complaint asserts two causes of action: (1) motor vehicle and (2) general negligence.

On November 1, 2023, Metro filed a cross-complaint against Maria Lilliana Ramirez, Roes 1 to 30, and Roe Companies 31 through 60, inclusive. The cross-complaint asserts five causes of action: (1) equitable indemnity, partial or comparative indemnity, (2) declaratory relief, (3) equitable comparative contribution, (4) apportionment of fault based on comparative negligence and/or comparative fault, and (5) property damage.

On May 28, 2024, in case no. 23STCV20707, Plaintiff filed a Request for Dismissal to dismiss City without prejudice. The Court granted the Request for Dismissal on May 30, 2024.

On December 14, 2024, the complaint in case no. 23NWCV02293 was dismissed without prejudice. (Order, 12/19/24.)

On September 12, 2025, the Court granted Metro’s motion to consolidate this action with case no. 23STCV20707. This action was deemed the lead case.

Legal Standard

“The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its

discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code.” (Code Civ. Proc., § 473, subd. (a)(1).)

Discretionary relief is available to “relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect.” (Code Civ. Proc., § 473, subd. (b).) An application for discretionary relief “shall be accompanied by a copy of the answer or other pleading proposed to be filed...and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.” (Code Civ. Proc., § 473, subd. (b).) Mandatory relief is available “whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney’s sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect...unless the court finds that the default or dismissal was not in fact caused by the attorney’s mistake, inadvertence, surprise, or neglect.” (Code Civ. Proc., § 473, subd. (b).)

Discussion

Plaintiff moves for relief from the voluntary dismissal of City on May 28, 2024, and to reinstate City as a defendant in this action. Plaintiff moves pursuant to Code of Civil Procedure section 473, subd. (a)(1) and (b), Code of Civil Procedure section 389, and the Court’s inherent equitable powers. This motion is unopposed.

Plaintiff argues that City misled Plaintiff into voluntarily dismissing it by representing that City is not a proper defendant because it does not own or operate the Metro bus or rail services. (Rabi Decl., ¶ 3, Exh. A.)

Here, relief under Code of Civil Procedure section 473, subdivision (b) is not available as it is untimely. A motion for relief under Code of Civil Procedure section 473, subdivision (b) “shall be made within a reasonable time, in no case exceeding six months.” (Code Civ. Proc., § 473, subd. (b).) Plaintiff moved to dismiss City on May 28, 2024, and the Court entered City’s dismissal on May 30, 2024. (Rabi Decl., ¶ 4, Exh. B.) Plaintiff moved for this relief over two years after the dismissal, well over the six-month deadline. The Court does not have authority to grant discretionary

relief. (Aldrich v. San Fernando Valley Lumber Co. (1985) 170 Cal.App.3d 725, 735, n. 3 [“The six-month time limit for granting relief under section 473 is jurisdictional and relief cannot be granted under section 473 if the application for such relief is instituted more than six months after the entry of the judgment, order or proceeding from which relief is sought.”].)

Plaintiff alternatively moves for relief pursuant to the Court’s inherent powers. However, the Court does not have inherent authority to set aside a voluntary dismissal. The Court’s jurisdiction to set aside a voluntary dismissal is limited to its jurisdiction under Code of Civil Procedure section 473, subdivision (b). (Basinger v. Rogers & Wells (1990) 220 Cal.App.3d 16, 21-22.) “Numerous cases categorically state the trial court “ ‘is without jurisdiction to act further in the action’ (citation)’ once a voluntary dismissal is filed.” (Id., at p. 21, n. 10 [“Section 473, not ‘inherent power,’ governs motions to vacate voluntary dismissals entered within six months of the motion.”].)

Plaintiff cites to Kulchar v. Kulchar (1969) 1 Cal.3d 467, 471-72 to argue that the Court can set aside the dismissal order on the basis of extrinsic fraud. “Under certain circumstances a court, sitting in equity, can set aside or modify a valid final judgment.” (Id., at p. 470.) “Extrinsic fraud usually arises when a party is denied a fair adversary hearing because he has been ‘deliberately kept in ignorance of the action or proceeding, or in some other way fraudulently prevented from presenting his claim or defense.’” (Ibid.) While Kulchar does not arise out of a voluntary dismissal, the Court considers this argument.

Plaintiff contends that City’s representation in its demurrer created a false impression that City had no involvement in the subject incident and did not control any relevant infrastructure at the collision location. The meet and confer letter, provided by Plaintiff, shows that Defendant stated that “[t]he City does not own, manage, operate, or otherwise control bus or rail services provided by LACMTA, and did not own, manage, operate, or otherwise control bus or rail services provided by LACMTA or LACMTA’s premises on the date of the alleged incident upon which this lawsuit is premised.” (Rabi Decl., ¶ 3, Exh. A.) Plaintiff contends that through subsequent discovery, Plaintiff learned that City controlled traffic signals at the relevant intersection.

Here, the Court does not find that this representation

constitutes extrinsic fraud. Rather, the Court finds that this constitutes intrinsic fraud. "Courts deny relief... when the fraud or mistake is 'intrinsic'; that is, when it 'goes to the merits of the prior proceedings, which should have been guarded against by the plaintiff at that time.'" (Id., at p. 472-73; see also *Heyman v. Franchise Mortgage Acceptance Corp.* (2003) 107 Cal.App.4th 921, 926 ["Where the defrauded party failed to take advantage of liberal discovery policies to fully investigate his or her claim, any fraud is intrinsic fraud."].) In *Kulchar*, relied upon by Plaintiff, the Supreme Court of California reversed an order granting relief when a party and her attorney did not investigate facts and chose to rely on an opposing party's representations. (Id., at p. 474.) Similarly, here, Plaintiff does not explain why she could not have verified Defendant's representations regarding the bus or rail services. Therefore, even if the Court is permitted to use its inherent powers to set aside a voluntary dismissal, under the facts presented here, Plaintiff does not establish extrinsic fraud.

To the extent that Plaintiff moves for relief under Code of Civil Procedure section 473, subdivision (a)(1), this is an improper basis for relief. A motion under Code of Civil Procedure section 473, subdivision (a)(1) is a motion for leave to amend which is an independent motion with separate requirements.

Accordingly, Plaintiff's motion to set aside the voluntary dismissal of City is DENIED.